

- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332(d).

Merits

The court finds that Convergent has shown good cause for a continuance for the trial date pursuant to Cal. Rules of Court, rule 3.1332(c). Convergent contends that it served its first sets of discovery, including special interrogatories, requests for production of documents, requests for admission and form interrogatories, on 10/22/25. (Decl. of Jackson, ¶ 2). After seeking several extensions, JAS served its written responses to Convergent's written discovery on 12/16/25. (Decl. of Jackson, ¶ 9). Convergent contends that JAS' responses are replete with baseless objections as JAS refuses to disclose any information regarding any of the critical issues in this case, including its unpermitted improvements and systems maintenance history. (Decl. of Jackson, ¶ 9). Convergent filed four motions to compel (which were sent to an informal discovery conference) and contends that it is unable to complete discovery, take depositions or file a motion for summary judgment.

JAS contests the basis for these discovery motions and contends that it produced over 2,000 documents and that Convergent's requests were poorly worded.

Nevertheless, the hearing date for the four motions is not until 7/2/26. Furthermore, this matter commenced 4/18/25, and this is the first request for a continuance.

JAS Partnership has not shown that it will be prejudiced as a result of the continuance.

Accordingly, the motion is GRANTED.

Convergent shall give notice.

11	McGovern vs. Kerr	TENTATIVE RULING: <u>Anti-SLAPP Motions to Strike</u> Harry McGovern (“Harry”) and Megan McGovern (“Megan”) move to strike the Cross-Complaint filed by Cross-Complainants Summer Kerr (“Summer”), Kathleen Constance (“Kathleen”), and Skyler Kerr (“Skyler”) pursuant to Code Civ. Proc. § 425.16. Erika Shawver also moves to strike the Cross-Complaint pursuant to Code Civ. Proc. § 425.16. For the following reasons, the motions are GRANTED. Statement of Law Code Civ. Proc. § 425.16 provides in relevant part: “A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” This section is to be construed broadly. Cal. Code Civ. Proc. § 425.16(a). The court’s determination of an anti-SLAPP motion is a two-step process. First, the court determines if the party moving to strike a cause of action has met its initial burden to show that the cause of action arises from an act in furtherance of the moving party’s right of petition or free speech. Then, if the court determines that showing has been made, the court determines whether the opposing party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) <u>Step One: Protected Speech</u> The Cross-Complaint asserts causes of action for 1) defamation – libel, 2) defamation – slander, 3) intentional infliction of emotional distress, and 4) negligent infliction of emotional distress. Cross-Defendants Harry McGovern (“Harry”) and Megan McGovern (“Megan”) did not provide a declaration in connection with their motion, so the Court is left only to the allegations of the unverified First Amended Complaint and the unverified Cross-Complaint. (See, e.g., Civ. Proc. Code § 425.16, subd. (b)(2) [noting that the court, “in making its determination [whether the plaintiff’s cause of action is
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subject to an anti-SLAPP motion], shall consider the pleadings and supporting and opposing affidavits stating the facts on which the liability or defense is based.”]; *Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 928–929 [“When the complaint itself alleges protected activity, a moving party may rely on the plaintiff’s allegations along in arguing that the plaintiff’s claims arise from an act ‘in furtherance of the person’s right of petition or free speech.’”].)

According to the First Amended Complaint (“FAC”), Harry and Megan are parents of a minor child Jane Roe. On January 31, 2023, they hired Summer Kerr (“Summer”) as a babysitter. Summer assisted in watching the children in Harry and Megan’s home, but after gaining their trust, Summer was permitted to take Jane Roe to a nearby park and certain authorized locations. (FAC, ¶ 8.) However, Defendants Summer, Kathleen Constance, and Skyler Kerr took Jane Roe to the homes of male predators who then physically and sexually abused Jane Roe. (Id. at ¶¶ 8-9.)

The Cross-Complaint alleges that Summer received a threatening voicemail and text messages from Harry on August 31, 2024, in which he stated in part, “There will be no place that you could hide on this planet for the hell that I’m gonna bring over you and your family and everyone else involved.” (Cross-Complaint, ¶ 11.) Summer returned that call and Harry told Summer that she was going to spend the rest of her life in jail. (Id. at ¶ 12.) Between November 2024 and January 2025, Summer was informed that Megan and Harry had been telling neighbors and friends that Summer was a child molester and child trafficker. (Id. at ¶ 16.) Cross-Complainants allege these statements were false. (Id. at ¶¶ 18-19.)

The first cause of action does not name Harry and Megan as Cross-Defendants. Harry and Megan are only named in the second, third, and fourth causes of action.

The second cause of action for slander alleges Cross-Defendants made the statements alleged in the Cross-Complaint to third parties who understood those statements to be about Cross-Complainants and that Cross-Complainants had committed crimes against children. (Cross-Complaint, ¶¶ 31-33.)

As indicated previously, Code Civ. Proc. § 425.16 protects “any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16(e)(3).) The Cross-Complaint alleges that Megan and Harry “had been telling individual neighbors and friends that Summer was a child molester and child trafficker.” (Cross-

Complaint, ¶ 16.) The FAC alleges that Plaintiffs had reported Defendants' conduct to the police and an investigation is ongoing. (FAC, ¶ 20.)

The Court finds that Harry and Megan's statements constitute protected activity under Section 425.16, subdivisions (e) because they were statements "in furtherance of [their] constitutional rights of freedom of speech . . . in connection with a public issue" (Code of Civ. Proc. § 425.16, subd. (b)(1).)

"The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, citing *Walker v. Kiouisis* (2001) 93 Cal.App.4th 1432, 1439 [complaint to police is "made in connection with an official proceeding authorized by law."].) In *Comstock v. Aber*, the defendant made allegations of sexual assault against the plaintiff to three groups of people: (1) the police, (2) a nurse, and (3) 'friends.' (Id. at 941.) Therein the Court held that all three statements fell within the anti-SLAPP protections of section 425.16. (Id. at pp. 941- 942.)

Child molestation or child abuse is an issue of public concern. (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 483 ["[A]llegations of abuse by members of the clergy and the protection of children concern issues of public interest."]; see also *Cross v. Cooper* (2011) 197 Cal.App.4th 357, 371–379 [discussing cases; holding that disclosure about a registered sex offender living in the neighborhood constituted protected speech in connection with an issue of public interest].) Harry and Megan's alleged statements that Summer was a child molester or child trafficker touched on an issue of public concern.

The third cause of action for intentional infliction of emotional distress is based entirely on the same conduct as the second cause of action for defamation. (Cross-Complaint, ¶ 39 ["The conduct of Cross-Defendants as alleged herein was extreme and outrageous."].) The same goes for the fourth cause of action for negligent infliction of emotional distress. (Cross-Complaint, ¶ 44 ["Cross-Defendants were negligent in making the statements alleged herein."].)

Harry and Megan have met their threshold burden of showing that the Cross-Complaint's causes of action against them arise from an act in furtherance of Harry and Megan's protected conduct.

The analysis is similar as to Cross-Defendant Erika Shawver ("Shawver"). The Cross-Complaint alleges only one fact specifically directed at Shawver: "Winslow published false and defamatory